ANTI-CORRUPTION COMMISSION

# COMMISSION MEETING FORM

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| **MEETING NO.** | 129th Commission Meeting |
| **DATE:** | 24 May, 2023 |
| **TIME:** | 02:00 PM |
| **VENUE:** | Third Floor Meeting Room |

| # | AGENDA & DISCUSSIONS | DECISIONS |
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| 1 | **Apprise on FITI training program – ED, DoPE**<br>*In response to FITI's request to design and conduct training for the staff from various financial institutions, the ED conducted in-house consultations with various Departments to understand and take stock of issues and contexts.*<br>*To this, ED proposed to engage relevant staff from DoPS, DoI, DARe and DoPE to design contents of three days training along with team from the FITI.* | **The Commission endorsed the proposal to engage official from DoPS, DoI, DARe and DoPE for a period of five days to design training content.**<br>**Directed the team to design course to cater to different levels of financial institutes' staff and to also ensure that the contents draw lessons from such trainings/sessions in the past.**<br>**ED was directed to discuss and plan the training calendar with FITI to facilitate the ACC team to accordingly schedule the delivery.** |
| 2 | **Apprise implementation, verification and assessment of OIP related to system study on surface collection and dredging of RBM– PD, DoPE**<br>*The half-yearly OIP assessment of system study on surface collection and dredging of RBM pertaining to DoFPS, RRCOs and DGM, based on field verification* | **The Commission noted that the overall implementation status of OIP (63.49%) is satisfactory in the half-yearly assessment. However, in the remaining six months, the Commission directed PD to encourage DoFPS, RRCOs and DGM to focus on 'partially' and 'not implemented' recommendations.**<br>**Further, PD was directed to prepare brief/update to the Parliament on its resolutions related to ACC's Annual Report 2021-2022. The report to include the actual revenue generated with the introduction of the reserve prices.**<br>**PPD was directed to hereafter invite representative from** |

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| | *conducted between 24 April – 9 May 2023, was presented to the Commission.*<br><br>*Some of the conclusions were as follows:*<br><br>- *The score of the OIP implementations of DoFPS' was 66.67%; RRCOs' was 57.14% & DGM's was 66.67%; and*<br><br>- *The implementation of reserve price and open auction method have impacted or resulted in substantial revenue generation for the government.* | **DARe during such presentation on system studies.** |
| 3 | **Update on UNCAC review meeting – LD & PPD** | **On the logistics arrangement, the Commission decided the following:**<br><br>- **Host the dinner, by the Chairperson, on the 1st day of the review meeting with special attention on delegates' dietary restrictions;**<br><br>- **Hire Hiace bus to provide local transportation for the delegates for the entire duration; and**<br><br>- **Inform the delegates concerned to reimburse applicable visa fees of Nu. 2500/-.** |
| 4 | **Review committees and member compositions – PPD**<br><br>*The Commission revisited all the standing committees and its member composition (with reference to the Office Order vide ACC/SECT-PPS/01/232 dated 2 December 2020) and as recommended by the Department/Division/Services concerned.* | **The Commission revised the Committees and its member composition as follows:**<br><br>**1) Investigation Review Committee (IRC):**<br><br>**i) Director, DoI (Chairperson);**<br>**ii) Chief of other Branch, DoI;**<br>**iii) Head, DARe;**<br>**iv) Chief of Branch concerned, DoI *or* RD of Regional Office concerned (Member Secretary);**<br>**v) Commissioner In-charge (Observer); and**<br>**vi) Expert from DoI or other Department/Division, on a case-by-case basis, as deemed appropriate by Director/DoI (Advisor/s).**<br><br>**The IRC to be convened as an when required for strategic advises/directives on cases. The operational and day-to-day guidance to be provided by the Director and the** |

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| | | **Commissioner-in-charge.**<br><br>**As against the proposal, the Commission directed DoI to maintain record of direction and recommendations of the IRC meeting, without having to record the detailed narration of case history. Further, while the presentation to the IRC shall be made by the Team Leader concerned, the Chief/RD of the Branch/RO concerned was directed to present to the Commission. This is based on the concerns raised during the 10th QSM to reduce administrative burden to the teams and to involve the Heads on cases.** |
| | | **2) Screening Committee:**<br><br>**i) Director, DoI (Chairperson);**<br>**ii) Chiefs of all Branches, DoI; and**<br>**iii) Commissioner In-charge (Observer).**<br><br>**The Commission directed the DoI to revise the prioritization guidelines. Besides regularly screening the priority of complaints qualified for investigation, the Commission directed the Committee to regularly monitor the status of complaints qualified for investigation (backlog) and also manage the caseloads to reduce the backlog.** |
| | | **3) Finance Committee:**<br><br>**i) Commissioner In-charge (Dasho Jamtsho) (Chairperson);**<br>**ii) Director, DoI;**<br>**iii) Director, DoPS;**<br>**iv) Director, DoPE;**<br>**v) Regional Director, Bumthang Regional Office;**<br>**vi) Regional Director, Phuentsholing Regional Office;**<br>**vii) Regional Director, Trashigang Regional Office;**<br>**viii) Head, DARe;**<br>**ix) Head, LD;**<br>**x) Head, SS;**<br>**xi) Head, PPD; and**<br>**xii) Chief/Focal Officer, Cluster Finance Services for Autonomous Agencies (Member Secretary).** |
| | | **4) Tender Committee:**<br><br>**i) Commissioner In-charge (Dasho A Karma Rinzin) (Chairperson);**<br>**ii) Head SS;**<br>**iii) Chief/ Focal Officer, Cluster Finance Services for Autonomous Agencies;** |

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| | | iv) A Representative from relevant Department/ Regional Office/Division/Services; and<br>v) Jigme Lhendup, Procurement Officer (Member Secretary).<br>**The member composition of the Cluster Finance Services representative was decided to be revisited in the next six months.** |
| | | **5) Manuals/Guidelines/SoPs Review Committee:**<br>i) Kin Dorji, Specialist (Chairperson);<br>ii) Head, LD;<br>iii) Head, Department/Division/Services concerned proposing the draft;<br>iv) Sherab Tharchen, Sr. Legal Officer, LD;<br>v) Officer/s from Department/Division/Services concerned proposing the draft; and<br>vi) Commissioner In-charge, if relevant to specific Department (Observer).<br>**The revised draft based on the comments of the review committee to be presented to the Commission.** |
| | | **6) Management Committee for Staff Welfare Scheme:**<br>i) Head, SS (Chairperson);<br>ii) Tashi Wangchuk, ADM, SS (Treasurer); and<br>iii) Karma Wangmo, PA (Executive Secretary).<br>**The Chair to regularly present the financial update to the staff in the QSM.** |
| | | **7) Prevention Advisory Committee:**<br>i) Director, DoPE (Chairperson);<br>ii) Kin Dorji, Specialist;<br>iii) Chief/Head EAD, DoPE;<br>iv) Head, LD;<br>v) Head, PPD; and<br>vi) Chief PD, DoPE (Member Secretary). |
| | | **8) ACC's Motivation and Social Security Scheme Committee:**<br>i) The Chairperson (Chair);<br>ii) Head of Office of Performance Management, the Office of the Gyalpoi Zimpon;<br>iii) Commissioners;<br>iv) Director, DoI;<br>v) Director, DoPE;<br>vi) Director, DoPS;<br>vii) Head, DARe;<br>viii) Head, LD;<br>ix) Head, PPD; and<br>x) Head, SS (Member Secretary). |

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| | | **9) Media management Team:**<br><br>**i) Media Spokesperson, Commissioner Jamtsho (Chairperson);**<br>**ii) Alternate spokesperson, Commissioner A Karma Rinzin;**<br>**iii) Director DoI;**<br>**iv) Head, LD; and**<br>**v) Information and Media Officer, PPD (Member Secretary).**<br><br>**The overall strategic directions on media management and media crisis management shall be provided by the Commission as per the Policy on the ACC's Media and Communication, and Guideline on Media Crisis Management.** |
| | | **10) Gift Administration Committee:**<br><br>**i) Tashi Jamtsho, Chief, PD, DoPE (Chairperson);**<br>**ii) Head SS;**<br>**iii) Legal Officer, LD; and**<br>**iv) Karma Wangmo, PA (Gift Disclosure Administrator).**<br>**The Committee and its member composition will be revisited after amendment of the Gift Rules 2017.** |
| | | **11) Human Resource Committee as per ACC/SECT-HRS/23/2023/00828 dated 9th May 2023.** |
| | | **12) Complaints Evaluation Committee as per the ACC/DoPS-CMD/01/2023/00767 dated 3 May 2023.** |
| | | **The Commission directed PPD to include the *Child Welfare Committee for the ECCD* in the lists of Standing Committees with details of its members.** |
| | | **The *Project Steering Committee for the Construction of the ACC office building in Phuentsholing*; and *Disproportionate Asset Committee* has ceased to function with completion of the construction works and as per Asset Declaration Rules 2022 respectively.** |
| 5 | **Review delegation of letter signatories – PPD**<br><br>*Upon directive of the Commission, PPD consulted the ACC's Senior Management on the letter signatory authority and responsibility. Accordingly the proposal, which looked in possible areas for delegation for enhanced accountability and* | **In general, the Commission endorsed the specific proposals to revise and delegate letter signatory authority, where possible, related to specific departmental/divisional correspondences. To this, some of the general directives of the Commission were as follows:**<br><br>- **The delegation of authority and responsibility should ensure quality of the content and due diligence.**<br>- **Protocols to be observed in keeping with the title/position of the recipients.**<br>- **Draft letters of sensitive and complex nature to be** |

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| | *responsibility without also undermining legal requirements and protocol, was presented to the Commission.* | **vetted by the Commission.**<br>- **As far as possible, use *Eversign* to sign the correspondence and send digital/electronic copy to the agencies concerned with copy to the Chairperson and Commissioner In-charge.**<br>**The Commission adopted the following for compliance by the relevant Department/Division/Services:** |

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| **A. COMPLAINTS & FOLLOW-UP** | |
| **Share complaints for Action** | **Delegated to the Director, DoPS. The letter to be copied to the Chairperson. However, the Chairperson to sign the letter if such letter is addressed to the Heads of Constitutional Bodies, Ministers, NC Chairperson, NA Speaker, Opposition Leader, Chief Justice, and HPM, observing protocol.** |
| **Share complaints for Sensitization** | |
| **Closure of Complaints/ATR** | |
| **Integrity Vetting Report** | **The Chairperson, as an interim measure till the system is fully operational.** |
| **Follow-up related to judgement** | **The Chairperson** |
| **B. INVESTIGATIONS** | |
| **Case assignment** | **The Chairperson** |
| **Summon order** | **Team Leader. The Commission directed to reduce inconsistencies in summoning clients with different practices vis-à-vis through such orders and sometimes through phone call.** |
| **Application for Search/Arrest/Remand/Release/ Injunction/Restraining Orders** | **Legal Representative** |
| **Request for custody of detainee** | **For request to RBP Headquarter, the Chairperson to sign** |

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| | | | **as it is addressed to the Chief of Police, observing protocol. If not, to be signed by Director DoI/ Regional Directors.** |
| | | **Suspension of public servant** | **The Chairperson** |
| | | **Suspension of license/ prohibition from entering into contractual relations** | **The Chairperson** |
| | | **Request for information and documents** | **Team Leader** |
| | | **Freeze order** | **The Chairperson** |
| | | **Revocation order** | **The Chairperson** |
| | | **Impounding of Travel documents** | **The Chairperson** |
| | | **Prosecution Referral** | **Commissioner In-charge/ Director DoI. Copied to the Chairperson** |
| | | **Administrative Referral** | |
| | | **Systemic Recommendation** | |
| | | **C. GENERAL** | |
| | | **Letter of Recommendation** | **The Chairperson** |
| | | **Inter-Office Memo** | **Respective Heads** |
| | | **To Whom it may Concern Letter** | **Head, SS** |
| | | **General Correspondence (Prevention, Education, resources, policy, plans, projects, HR, UNCAC, etc)** | **The Chairperson/ Commissioner In-charge/ Director/ Heads (Protocols to be observed)** |
| | | **Sanction Order, Re-appropriation of Budget & Supplementary Incorporation** | **Commissioner In-Charge** |
| | | **Contract documents with clients** | **Head, SS** |
| | | **Supply order, work order, and notification of award** | **Head, SS** |
| | | **Government Property return form** | **ADM Officer/ Store In-charge** |
| | | **Loan application to the Financial Institutes** | **Head of Department/Divisions** |
| | | **Separation Order and Relieving order** | **The Chairperson** |
| | | **When sending general notification electronically using 'RGoB user' email account, all were advised to address it as Dasho/Sir/Madam as it is a general email. However, it has to be appropriately addressed, with titles, if addressed to specific email recipients such as Lyonpo, Director, etc.** | |
| 6 | **Any Other:** | **PPD was directed to revisit proposal to launch the revamped ACC website along with DoPE, on an appropriate date, before mid of June 2023.** | |

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| | | **The Commission directed SS to plan in-house religious books/prayer recitation program in the 6th Month of Bhutanese Calendar, coinciding on 21st July 2023. SS to seek suggestions from the staff on the details of the program.** |

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| **Commissioner** | **Commissioner** | **Chairperson** |

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